Flowrish: licence and exit terms outline

For discussion with a lawyer. This is a checklist of points to cover, not legal advice or contract wording.

Goal

Clients keep full ownership of their data. Flowrish keeps ownership of its software and methods, and clients may use them only while they are paying customers. Exit must be fair to the client and protect Flowrish from copying.

1. Definitions to agree

- **Client Data:** the client's source files and the cleaned and structured data derived from them.
- **Outputs:** dashboards views, reports and exports produced from Client Data.
- **Flowrish Software:** the pipelines, connectors, extraction logic, templates, dashboard designs, configuration and documentation, including improvements made during the engagement.
- **Deployment:** where it runs (client laptop, client server, or client's own cloud account).

2. Ownership

- Client owns Client Data and Outputs.
- Flowrish owns all Flowrish Software and any custom work done for the client, unless a separate written assignment is agreed (and priced accordingly).
- Flowrish may reuse general know-how and non-client-specific components for other clients.

3. Licence grant

- Non-exclusive, non-transferable, non-sublicensable, limited to the client's own internal business use.
- Valid only for the paid term, for the stated deployment and number of sites.
- Clarify whether unlimited users are intended, as promised in marketing.

4. Restrictions

- No copying, modifying, reverse engineering, decompiling or extracting source logic.
- No sharing, reselling, hosting for third parties or using it to build a competing product.
- No removing licence checks or notices.
- Right for Flowrish to verify compliance (for example by licence check or a reasonable audit).

5. Term, fees and minimum commitment

- Initial term (for example 12 months) with renewal, or an early-termination fee if the client leaves sooner.
- Setup fee and recurring fee defined separately. Payment terms, late payment, and tax (GST) treatment.
- Right to suspend access for non-payment after notice and a grace period.

6. Termination and exit

- Licence ends on expiry or termination, and the client must stop using and delete or return the software.
- **Data export:** client can export Client Data and Outputs in open formats (such as CSV) within a fixed window, for example 30 days.
- Flowrish deletes any client data it holds after the export window and confirms in writing.
- Optional paid transition help if the client moves to another provider.
- Decide what happens to custom dashboards and logic: they remain Flowrish property, with Outputs remaining the client's.

7. Technical enforcement (to be reflected in the contract)

- Licence key with an expiry date and a grace period.
- Source code is not delivered. Deliver packaged builds or containers only.
- For cloud deployments in the client's own account: how Flowrish access and deployment credentials are granted, how they are revoked on termination, and who pays cloud costs.
- Updates and new connectors available only under an active licence.

8. Data protection and confidentiality

- Flowrish does not keep a copy of Client Data. If remote support requires access, define how, when and by whom, and log it.
- Confirm obligations under India's data protection law and any client sector rules, and whether Flowrish acts as a processor.
- Mutual confidentiality, including Flowrish's methods and the client's business information.
- Breach notification process and timelines.

9. Accuracy and responsibility

- Document and invoice extraction is not perfect. State that uncertain items are flagged for human review and that the client remains responsible for decisions based on dashboards.
- Support scope and response times.
- Limitation of liability and an overall cap tied to fees paid.

10. Other clauses

- Governing law and dispute resolution (court or arbitration, location).
- Non-solicitation of staff. Ask the lawyer how enforceable non-compete wording is in India, since post-contract restrictions are often hard to enforce.
- Third-party and open-source components: check each licence allows commercial use and distribution the way you plan, especially any that require sharing source.
- Trademark use: client may not use the Flowrish name or logo without permission.

Questions to ask the lawyer

1. Is a click-through or signed licence agreement better for the laptop tier?
2. Can an early-termination fee be enforced as written, and how should it be worded?
3. What wording protects custom work while staying acceptable to clients?
4. Which of my current employer's contract terms could affect what I can license?
5. Do I need a separate privacy policy and data processing terms for each deployment type?

Before you meet the lawyer

- Bring this outline, the landing page, the one-page offer and a list of the tools and libraries you plan to use.
- Bring your current employment contract so the lawyer can check moonlighting and IP clauses.